

REPUBLIC OF LITHUANIA
LAW
ON THE AMENDMENT OF THE LAW ON EDUCATION

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Article 1. Reformulation of the Law on Education of the Republic of Lithuania

The Law on Education of the Republic of Lithuania is restated as follows:

L A W
ON EDUCATION OF THE REPUBLIC OF LITHUANIA

CHAPTER ONE

GENERAL PROVISIONS

Education is an activity intended to provide an individual with a basis for a worthy independent life and to assist the individual in the continuous cultivation of abilities. Every person has an inherent right to learn.

Education is a means of shaping the future of the person, the society and the State. It is based on the acknowledgement of the indisputable value of the individual, his right of free choice and moral responsibility, as well as on democratic relationships and the country's cultural traditions. Education protects and creates national identity. It guarantees continuity of the values that make a person's life meaningful, that grant social life coherence and solidarity, and that promote development and security of the State.

Education serves its purpose best when its advancement leads the overall development of society. Therefore education is a priority area of societal development that receives State support.

Article 1. Purpose of the Law on Education

The Law on Education establishes the goals of the educational system, the principles of the educational system, the framework of institutions, activities and civil relationships as well as obligations of the State in the area of education.

Article 2. Main Concepts in the Law

1. **Accreditation** – recognition that the assessed object complies with established criteria.
2. **General education** – education in compliance with pre-primary, primary, basic, secondary curricula (or special education variants thereof).
3. **General education school** – a school the main activity of which is education in compliance with implementing pre-primary, primary, basic, secondary curricula (or special education variants thereof).
4. **Formal education** – education implemented according to the curricula approved and registered in accordance with a procedure prescribed by legal acts, the completion of which results in the attainment of a primary, basic, secondary, post-secondary or higher education level and/or a qualification.
5. **Education level** – competence, knowledge, skills, abilities and values, demonstrating a particular level of personal development, attainment thereof is recognised according to a procedure prescribed by the Government or its authorised institution.
6. **Competence** – ability to perform a certain activity on the basis of the entirety of acquired knowledge, skills, abilities and values.
7. **Qualification** – ability and right to engage in a certain professional activity, as recognised according to a procedure prescribed in law or in legislative acts of the Government or its authorised institution.
8. **Freelance teacher** – a natural person engaged in activity of an education provider on an individual basis.
9. **License** – a document, issued as prescribed by the Government or its authorised institution, confirming the right of a legal entity to implement curricula.
10. **School** – institution whose main activity is formal and/or non-formal education.

11. **School audit** – assessment of a school resulting in the identification of tasks for its improvement.
12. **School community** – the teachers, learners, learners’ parents and other persons in a single school, connected by learning relationships existing at that school and by common education goals.
13. **School maintenance funds** – funds indirectly associated with the education process (funds for the school's physical plant management and operation, learners’ transportation and funds allocated to cover other maintenance costs).
14. **Teaching funds** – funds directly associated with the education process (salaries covering implementation of the Teaching Plan, funds for teachers' in-service, textbooks and other teaching aids, for administration of the education process, for the school library, psychological, special-pedagogical, special and social-pedagogical assistance and healthcare in schools).
15. **Education agreement**– an agreement between a student and a provider of education services concerning teaching and learning.
16. **Learner** – a person who engages in learning.
17. **Teacher** – a person who educates learners according to formal or non-formal education programs.
18. **Non-formal education** – education according to a variety of programs geared to satisfy individual education needs, to provide in-service education and to provide for acquisition of an additional competence.
19. **Non-State School** – a school founded by a Lithuanian legal entity (except the *Seimas*, the Government, the Ministry of Education and Science, other Ministries, Government agencies, agencies under the Ministries, the county governor or the municipal council) or natural person; or a school founded by a Lithuanian legal entity or natural person in co-operation with foreign legal entities or natural persons; a school founded by a foreign legal entity or natural person.
20. **Certificate** – a document issued according to a procedure established under the laws, confirming results of a person's learning: the completion of an education program or an education module or the attainment of an education level, acquisition of a qualification or competence.
21. **Pedagogue** – a person who has attained the education level mandated by the State as well as the qualification of a pedagogue.

22. **Compulsory education** – compulsory State-guaranteed education until the age of 16 of citizens of the Republic of Lithuania and aliens having a permanent or provisional residence permit in the Republic of Lithuania according to primary and basic education curricula.
23. **Self-education** – continuous independent learning, based on information a person obtains from various sources and practical experience.
24. **Municipal school** – a school founded by a municipal council or a school founded by a municipal council together with legal entities or natural persons of the Republic of Lithuania.
25. **Special needs learner** – a learner, whose ability to learn and participate in public life is limited due to congenital or acquired disability.
26. **Special program funds** – grants, donations, fees for education and other services allocated to programs and projects by legal entities and natural persons.
27. **Student** – a person who studies according to post-secondary and higher education curricula.
28. **Education endeavours** – the activity of an education provider directed at the development of a learner's values, knowledge and competence.
29. **Educational establishment** a school, an establishment providing assistance to a learner, a teacher or a school, the main activity of which is education endeavours or (or) education assistance.
30. **Education assistance** – expert assistance to learners, their parents (foster parents, guardians), teachers and education providers, that supports increased effectiveness of education.
31. **Education planning** – devising an agenda of educational objectives, tasks and implementation methods.
32. **Educational program** – pre-defined formal or non-formal education endeavours, aimed at the achievement of a specific result.
33. **Educational program module**– a pre-defined and independent part of an educational program.
34. **Education monitoring** – continuous analysis, assessment and forecasting of the state of and trends in education.
35. **Education provider** – a school, a freelance teacher or another education provider (institution, enterprise, organisation whose main activity is other than education) that is entitled to provide educational services as prescribed in this Law.

36. **Education** – the cultivation, teaching, training or forming of skills, abilities and values.
37. **Teaching Plan** – implementation regulations for a curriculum
38. **Curriculum** – an education program (module) formalised in various ways; its content, means of delivery and teaching methods are aimed at the achievement of a planned result.
39. **Concentre of curriculum content** – a period of teaching regulated according to teaching goals and tasks; didactic provisions; content and intended results of the curriculum.
40. **Curriculum content** – an integrated system of knowledge, skills, abilities and values.
41. **State-run school** – a school established by the *Seimas*, the Government, the Ministry of Education and Science, another Ministry, a Government agency, an agency under the Ministry, the county governor, as well as a school established by a State institution together with legal entities or natural persons of the Republic of Lithuania.
42. **Universally available education** – education made available by the State to all citizens of the Republic of Lithuania and aliens having a permanent or provisional residence permit in the Republic of Lithuania.

Article 3. Goals of Education

The goals of education are:

- 1) to develop a young person's values enabling him to become an honest, knowledge-seeking, independent, responsible and patriotically-minded person; to cultivate the communication skills important in contemporary life; to assist in internalising the information culture characteristic of the knowledge society, by providing for mastery of native and foreign languages, information literacy as well as social competence and the skills to shape life independently;
- 2) to identify a young person's creative abilities and upon this basis to help him acquire a vocational qualification and competence conforming to contemporary culture and technology; to assist him to get established and successfully compete in the shifting labour market; to convey the basics of modern technological, economic and business culture necessary to ensure the progress, competitiveness and sustainable development of the country's economy; to create conditions for continually satisfying cognitive needs as well as improving oneself through life-long education;

- 3) to reinforce the capability of society to ensure sustainable development of the country's economic, environmental and human resources, internal and external economic competitiveness, national security and the advancement of a democratic State;
- 4) to convey to each person the basics of national and ethnic culture, the traditions and values of the humanistic culture of Europe and of the world, to foster the maturation of each person's national identity, moral, aesthetic and scientific culture and personal outlook; to guarantee the continuity of ethnic and national culture, the preservation of its identity and continuous renewal of its values; to promote the nation's openness for interaction and dialogue with other cultures;
- 5) to ensure conditions enabling a person to acquire the basics of civic and political culture that embody democratic traditions, and to develop the abilities and experience needed by a person for competence as a citizen of Lithuania and a member of the European and global community as well as of a multi-cultural society.

Article 4. Education content

1. The content of education programs is comprised of systemic knowledge, skills, abilities and values necessary to achieve the goals specified in Article 3 of this Law.
2. Specific content for education is formed and systematically updated in accord with the education goals set for schools of a particular type, the needs of Lithuanian society as determined by changes in the social and cultural environment, the needs of the local and the school community, also the specific needs and interests of learners and students.
3. Provisions of paragraphs 1 and 2 of this Article apply when developing pre-school, pre-primary, general education, vocational training, post-secondary study and higher education curricula and their modules, standards for attained education levels and/or qualification requirements, Teaching Plans or plans of studies, examination materials, textbooks, other teaching aids and additional teaching materials.

Article 5. Principles of the Educational System

The principles upon which the educational system is based are:

- 1) equal opportunity: the educational system is fair, it ensures equality for individuals irrespective of gender, race, nationality, language, origin, social position, religion, beliefs or convictions; it assures each individual access to education, opportunity for

attainment of a general education level and a primary qualification and creates conditions for in-service education or gaining a new qualification;

- 2) contextuality: the educational system is closely linked to the context of national economic, social and cultural development; renews itself as this context does and meets the continuously changing needs of society;
- 3) effectiveness: the educational system pursues high-quality results by rationally and economically using available resources; by continuously evaluating, analysing and planning its activity; and by relying on effective management, i.e. proper and timely decisions;
- 4) continuity: the educational system is flexible, open, based on interaction of various forms and institutions; it creates conditions for each individual to engage in life-long learning.

CHAPTER TWO

STRUCTURE OF THE EDUCATIONAL SYSTEM

Article 6. Educational System

The educational system of Lithuania is comprised of:

- 1) formal education (primary, basic and secondary education, vocational training as well as post-secondary and higher studies);
- 2) non-formal education (pre-school, pre-primary and other non-formal education of children and adults);
- 3) self-education;
- 4) assistance to the learner (informational, psychological, social-pedagogical, special-pedagogical and special assistance and healthcare in schools);
- 5) assistance to the teacher and the school (assistance in the form of information, consultations, in-service education and other forms of assistance).

Article 7. Pre-School Education

1. The purpose of pre-school education is to help a child satisfy inherent cultural (including ethnic), social and cognitive needs.
2. Pre-school education takes place in the family; or is provided, upon the request of the parents (foster parents) or the recommendation of institutions responsible for the protection of children's rights, according to a pre-school curriculum.

3. Pre-school education is provided to children from the age of 1 to 5 (or 6).
4. The pre-school curriculum is implemented by nurseries, nursery-kindergartens, kindergartens, kindergarten-schools and other schools, freelance teachers or other education providers.
5. Families raising pre-school children at home receive educational assistance according to a procedure established by the Government or its authorised institution.

Article 8. Pre-primary Education

1. The purpose of pre-primary education is to help a child prepare for successful learning according to the primary education curriculum.
2. The provision of pre-primary education to a child commences on the calendar year when a child turns 6 years of age. Pre-primary education may begin earlier upon the parents' request if the child has achieved the maturity required for this kind of education, but not before he reaches the age of 5. It may be compulsory for certain children, where such a decision is adopted by institutions responsible for the protection of children's rights.
3. The one-year curriculum of pre-primary education is implemented by kindergartens, primary and other schools, freelance teachers or other education providers.
4. Children who are 5 - 6 years of age and who do not attend school receive educational assistance according to the procedure established by the Government or its authorised institution.

Article 9. Primary Education

1. The purpose of primary education is to provide an individual with the basics of moral and social maturity, the basics of culture (including ethnic culture) and with elementary literacy, as well as to assist in preparing for learning according to the basic education curriculum.
2. A child starts attending the first grade of primary education that calendar year when he turns 7 years of age.
3. Primary education may begin before the time specified in paragraph 2 of this Article upon the parents' request if the child has achieved the maturity required for this kind of education.
4. The four-year primary curriculum is implemented by kindergarten-schools, primary and other schools.

5. Upon completion of the primary education curriculum, the primary education level is attained.

Article 10. Basic Education

1. The purpose of basic education is to provide an individual with the basics of moral, sociocultural and civic maturity, general literacy and the basics of technological literacy, to cultivate national consciousness, to foster an intent and ability to make decisions and choices and to continue learning.
2. Basic education is provided to learners who have attained the primary level of education.
3. Part I of the basic curriculum encompasses four-year basic education content centre and Part II - two-year basic education content centre. The basic curriculum or a part thereof is implemented by gymnasiums, secondary, basic, youth, vocational and other schools.
4. Upon completion of the basic curriculum, the basic education level is attained.

Article 11. Secondary Education

1. The purpose of secondary education is to assist a person in the acquisition of general academic, sociocultural and technological literacy, moral, national and civic maturity, and the basics of vocational competence and/or qualification.
2. State-guaranteed universally available secondary education is provided to learners who have attained the basic education level.
3. The two-year secondary curriculum is implemented by gymnasiums, secondary, vocational and other schools. The secondary curriculum consists of compulsory and elective modules of general education and possibly modules of vocational training. The secondary curriculum that also grants a vocational qualification may last for three years.
4. Curriculum modules that have been assessed and recognised by vocational schools and post-secondary schools and meet the requirements of curricula implemented in such schools may be included in a secondary curriculum; completion of such modules is credited upon continuing education and studies at these schools.
5. Upon completion of the secondary curriculum and passing of *matura* examinations, a secondary education level is attained.

Article 12. Vocational Training

1. The purpose of vocational training is to assist a person in the acquisition, change or upgrading of qualification and preparation for participation in the changing labour market.
2. Vocational training may be primary vocational training or continuing vocational training.
3. Primary vocational training is formal, universally available and intended for the acquisition of a primary qualification. It is provided to learners who have attained basic or secondary education levels. In the case of learners who have attained a basic education level it may be provided in parallel with secondary education. Primary vocational training may also be provided to students who have not attained a basic education level and are at least 14 years of age.
4. Continuing vocational education is provided to persons who have a primary qualification. Its purpose is to upgrade the existing vocational qualification or to acquire another one. Continuing vocational education encompasses both formal vocational training (learning) of adults and non-formal adult education.
5. Formal vocational training curricula are implemented by vocational schools, gymnasiums or other education providers who are licensed to train according to such curricula.
6. Curriculum modules that have been assessed and recognised by post-secondary schools and meet the requirements of the curricula implemented in such schools may be included in a vocational training curriculum. Completion of such modules is credited upon continuing education and studies at these schools.
7. A qualification is acquired upon completion of vocational training curriculum and/or passing qualifying examinations
8. Primary vocational training and formal vocational training of adults is regulated by the Law on Vocational Training.

Article 13. Post-secondary Studies

1. The purpose of post-secondary studies is to assist a person in attaining a post-secondary education level and acquiring a particular qualification, also in preparing for participation in the labour market and civic life.
2. Post-secondary studies are universal; they are provided to persons who have attained a secondary level of education and are able to study independently.

3. Curriculum modules that have been assessed and recognised by non-university schools of higher education and meet the requirements of study curricula of the first stage of sequential studies at schools of higher education may be included in the post-secondary curricula. Completion of such modules in a post-secondary curriculum is credited upon continuing studies at a school of higher education.
4. Post-secondary study curricula are implemented by post-secondary schools and other schools licensed to provide education according to such curricula.
5. A post-secondary education level is attained and a qualification is acquired upon completion of the post-secondary study curriculum and defending a final thesis (project) and/or passing final examinations.

Article 14. Higher Education Studies

1. The purpose of higher education is to assist an individual in the attainment of a higher education level and acquisition of a respective qualification as well as in preparing for an active professional, social and cultural life.
2. Higher education is universally available, and is provided to persons who have attained a secondary education level and are able to study independently.
3. Higher education study curricula are implemented by schools of higher education, i.e. universities and colleges. A student who studies at intervals at different schools of higher education may complete a program of study in the form of discrete modules.
4. Completion of a study curriculum of higher education results in the attainment of a higher education level and/or acquisition of a qualification. Academic degrees are acquired as prescribed in the Law on Higher Education.
5. Operational principles as well as the regulations for studies at schools of higher education are prescribed in the Law on Higher Education.

Article 15. Special Education

1. The purpose of special education is to assist an individual with special needs in his development, to help him learn according to his abilities, attain an education level and acquire a qualification; and to overcome social exclusion.
2. Special education is provided according to all compulsory and universally available programs of education. If necessary, such programs are amended and adjusted, special education curricula are developed and additional assistance is provided.

3. Special education is implemented by all schools that provide compulsory and universally available education, other education providers and (in certain cases) special education schools.
4. Completion of formal education programs may, for the purposes of special education, take longer than the established period. A learner who studies at intervals may complete the programs by way of discrete modules.
5. Individuals with special needs who study according to programs that meet national standards for attainment of an education level may attain such a level and/or a qualification. In certain cases a qualification is acquired without having attained an education level.
6. Special education is regulated by the Law on Special Education.

Article 16. Non-formal Children's Education

1. The purpose of non-formal children's education is to satisfy the learners' cognition, development and self-expression needs, and to help them become active members of society.
2. Non-formal children's education programs are implemented by music, art, sports and other schools, freelance teachers and other education providers.
3. Music, art, sports and other schools that implement pre-set programs of formal education or modules thereof are considered as the same type as those that implement formal education. Individuals who seek to attain a higher education level in the area of music and art must, in addition to secondary education, complete a designated program confirmed by the Minister of Education and Science (if such a requirement is established in the enrolment procedure of the school of higher education).
4. During school vacations non-formal children's education programs are implemented according to a procedure established by the founder of the school or by the education provider.
5. A competence acquired in the course of non-formal learning may be recognised as a part of a formal education program or a qualification, according to a procedure established by the Government or its authorised institution, or according to a procedure established by schools of higher education. A long-term arts curriculum completed at a children's music, art, sports or other school may be recognised as a module of vocational training.

Article 17. Non-formal Adult Education

1. The purpose of non-formal adult education is to provide an individual with conditions for life-long learning, meeting the needs of cognition, upgrading qualification and acquiring additional qualifications.
2. Non-formal education of adults is provided to each individual who has chosen this kind of education and is at least 18 years of age.
3. Non-formal education of adults may be provided by all education providers.
4. A person's competence acquired by way of non-formal education may be recognised as being a part of a formal education program or a qualification as prescribed by the Government or its authorised institution, or by a school of higher education.
5. Non-formal adult education is regulated by the Law on Non-formal Adult Education.

Article 18. Self-Education

1. The purpose of self-education is to provide an individual with possibilities for continuous independent learning supported by the surrounding information space (libraries, media, internet, museums, etc.) and life experience gained from other persons.
2. A person's competence acquired by way of self-education may be recognised as being a part of a formal education program or a qualification as prescribed by the Government or its authorised institution.

Article 19. Informational Assistance

1. The purpose of informational assistance is to help the school or other education provider, teachers, learners, all citizens and residents of the Republic of Lithuania obtain information about education, its quality, demand for a particular attained education level and vocational qualifications on the labour market.
2. Informational assistance includes the development and implementation of special informational education programs as well as the creation and maintenance of a system of information networks. Informational assistance guarantees continuous and accessible information about possibilities for attaining a needed education level or acquiring a qualification.
3. Informational assistance on the national, county, municipal and school level is provided by institutions of education, culture and science and also by individuals.

Article 20. Psychological Assistance

1. The purpose of psychological assistance is to help learners regain emotional harmony and the ability to live and to learn.
2. Psychological assistance to a learner who experiences personal and learning problems is universally provided by assistance providers, co-operating with and providing consultations to the learner's parents (foster parents, guardians,) and teachers.
3. Psychological assistance is provided and prevention of psychological problems is undertaken by psychologists employed at Psychological Services, Pedagogical-psychological Services and schools. The Government or its authorised institution establishes the procedure for provision of psychological assistance and mandates requirements for the qualification and attained education level of psychologists.

Article 21. Social Pedagogical Assistance

1. The purpose of social pedagogical assistance is to help a child exercise his right to education and ensure his safety at school; to eliminate reasons for truancy or school avoidance; to return drop-outs to school; to help a child (in co-operation with the parents (foster parents, guardians) choose a school according to his mental and physical abilities and to adapt at school.
2. When providing social pedagogical assistance to learners, the school co-operates with social assistance services, healthcare institutions and law enforcement institutions and provides consultations to students' parents (foster parents, guardians) and teachers.
3. The extension of social pedagogical assistance to children and learners is regulated by the General Provisions for extending social pedagogical assistance confirmed by the Government or its authorised institution.

Article 22. Special-Pedagogical Assistance and Special Assistance

1. The purpose of special-pedagogical assistance and special assistance is to increase the effectiveness of learning for individuals with special needs.
2. Special-pedagogical assistance to persons less than 21 years of age is provided by pedagogues of Pedagogical-psychological Services and special educators at schools according to a procedure established by the Government or its authorised institution.
3. Special assistance is provided to individuals in need of such assistance. According to the procedure established in the Law on Special Education, such persons receive

compensatory educational equipment; also, they are provided with interpreters, readers, attendants and teachers' aides

4. Pedagogues of Pedagogical-psychological Services and special educators at schools provide consultations to parents (foster parents, guardians) of the recipients of special assistance and to teachers.

Article 23. Healthcare in Schools

1. The purpose of healthcare in schools is to assist learners in maintaining and improving their health.
2. Healthcare in schools, provided by a public healthcare expert, includes primary healthcare as well as methodological assistance and consultations on health improvement activity to teachers, learners and their parents (foster parents, guardians). The provider engages in other activities according to Rules jointly established by the Ministries of Health and of Education and Science.
3. Healthcare experts for schools are educated at schools of higher education according to a procedure jointly established by the Ministries of Health and of Education and Science and on the basis of confirmed programs. The procedure for upgrading the professional skills of such experts is established by the Ministry of Health.
4. Statistics about learners' health, health risks and learning behaviours are used for the purposes of audit and monitoring.

Article 24. Assistance to the School and the Teacher

1. The purpose of assistance to the school and the teacher is to create conditions for teachers to engage in further learning, to create an environment that promotes school development and teachers' professional growth, and to provide necessary informational, expert and consulting assistance.
2. Consulting assistance to teachers is tendered by providers of psychological, special-psychological, special, social-pedagogical assistance, by teacher-consultants and other persons.
3. Assistance in the upgrading of teachers' skills is a constituent part of non-formal adult education.

4. The Ministry of Education and Science creates a network of teachers' in-service institutions, whose activity is regulated by the General Provisions of In-service Institutions approved by the Ministry of Education and Science. The Ministry of Education and Science ensures implementation of State-mandated in-service programs.

CHAPTER THREE

ACCESSIBILITY AND QUALITY OF EDUCATION

Article 25. The Right and Duty of Lithuanian Residents to Study

1. Each citizen of the Republic of Lithuania, also each alien having a permanent or provisional residence permit for the Republic of Lithuania, has the right to study, attain an education level and a qualification.
2. The State takes measures so that each child in Lithuania studies according to primary, basic, secondary or special education curricula.
3. The State guarantees each citizen of the Republic of Lithuania, also each alien having a permanent or provisional residence permit for the Republic of Lithuania:
 - 1) primary, basic and secondary education;
 - 2) access to special education, post-secondary and higher education study curricula or vocational training curricula that result in the acquisition of a primary qualification.
4. A learner who has suspended his studies may resume them at the same or at a different school as prescribed contractually or in legislative acts.
5. A person who has attained a basic or secondary education level and wishes to supplement his preparation for further studies is provided an opportunity to repeat general education subjects of his choice and to repeat examinations, as prescribed by the Minister of Education and Science.
6. Residents of Lithuania have the right to study abroad. This right may be exercised through one's own initiative and guarantees thereof are set forth in the laws of the Republic of Lithuania or international agreements.

Article 26. Provision of Information about Education

1. The purpose of provision of information about education is to furnish a person with information that would help him choose education, an education provider as well as

the aspired-to attained education level and profession in line with his interests, dispositions and abilities.

2. Information about programs of formal and non-formal education implemented at schools, choices offered, enrolment terms, paid services, teachers' qualifications, major school audit findings, traditions and achievements of the school community are annually made public, as prescribed by the Minister of Education and Science.
3. Vocational information and counselling services include provision of information about opportunities afforded by vocational training, post-secondary and higher education study curricula, possible study abroad, employment prospects on the labour market of Lithuania; and consulting. This aid is provided in schools, information centres consulting services and labour exchanges in compliance with requirements established by the Ministers of Education and Science and Social Security and Labour.

Article 27. Choice of Education Programs

1. When a person chooses curricula, he observes the sequence of curricula established in Articles 7 to 14 of this Law.
2. A learner enjoys the possibility of choosing education programs, different versions thereof, modules and subject courses according to his abilities and dispositions. A learner also chooses a school implementing a selected education program, an alternate education provider, or independent studies as prescribed by the Minister of Education and Science.
3. Apart from compulsory subjects and different programs (courses) thereof, a learner may study elective subjects offered by the school.
4. An individual is free to pursue non-formal education programs and self-education.

Article 28. Network of Education Providers

1. The purpose of the network of education providers is to ensure accessibility of compulsory and universally available education, its variety, and the possibility of life-long learning to all citizens of the Republic of Lithuania and aliens having a permanent or provisional residence permit for the Republic of Lithuania.
2. The network of education providers encompasses State-run, municipal and non-State general education, vocational, post-secondary schools, schools of higher education, freelance teachers and other education providers.
3. The network of education providers is created through:

- 1) developing education programs and furthering education variety ;
 - 2) co-ordinating the educational programs that are being provided;
 - 3) founding, reorganising, liquidating and restructuring schools.
4. The Minister of Education and Science, together with municipalities and county governors, assures an optimal national network of providers of vocational training and adult education; the Government assures a network of providers of higher education.
 5. The county governor ensures that that the county territory has sufficient special education schools and general education schools which have an environment adapted for the learning of special needs persons.
 6. The municipality must have a sufficient network of providers of primary, basic, secondary and non-formal education programs, thus ensuring individuals' learning and securing their right to learn in the State language, as well as a network of institutions that provide assistance to learners, teachers and schools.
 7. In localities where a national minority traditionally constitutes a substantial part of the population, upon that community's request, the municipality assures the possibility of learning in the language of the national minority.
 8. The municipality initiates the formation of a network of vocational training and adult education providers to meet local needs.
 9. The procedure for creating the network of schools implementing formal education programs is established by the Government.

Article 29. Enrolment in Schools, Changing Schools, Expulsion from Schools

1. A person has the right to choose a State-run, municipal or non-State school and to change schools.
2. The procedure of enrolment in a State-run and municipal general education and vocational school is established by the founder on the basis of General enrolment criteria confirmed by the Minister of Education and Science.
3. Priority enrolment in a State-run or municipal general education school is granted to persons living in the service territory assigned to that school by its founder. At the request of parents (foster parents, guardians) and the child, a child may be enrolled in another general education school subject to the availability of free places.
4. The enrolment procedure for a non-State school implementing formal education programs is established by the founder, based on enrolment requirements for the respective programs established in this Law.

5. The enrolment procedure for a school implementing children's non-formal education programs is established by the founder.
6. Terms for enrolment in a school of higher education are established by the school of higher education. A State-run school of higher education co-ordinates the terms and rules of enrolment with the Minister of Education and Science, as prescribed by the Government.
7. Enrolment of persons in schools implementing special education and vocational training curricula and non-formal adult education are regulated by the laws on Special Education, Vocational Training and Non-formal Adult Education.
8. A child under 16 years of age may not terminate study in compulsory education programs
9. A school unable, for objective reasons, to guarantee a learner in compulsory education programs psychological, special-pedagogical, special or social-pedagogical assistance, proposes his transfer to another school in co-operation with the student's parents (foster parents, guardians) as well as the Pedagogical-psychological and Children's Rights Protection Services.
10. A learner in compulsory education programs, if his behaviour poses a real and obvious threat to the safety of members of a school community, may (with the assent of the Children's Rights Protection Services) be expelled from that State-run or municipal general education school. The principal, together with the founder of the school (or upon a joint decision of the founders) transfers the learner to another school; the learner's parents (foster parents, guardians) also participate in the process. The school informs the municipality where the learner resides about his expulsion and transfer.

Article 30. The Right to Study in the State Language and in the Mother Tongue

1. Instruction in the Lithuanian state language and study of the Lithuanian state language is guaranteed to all citizens of the Republic of Lithuania and aliens having a permanent or provisional residence permit in the Republic of Lithuania.
2. At those general education and non-formal education schools, the by-laws of which (respecting the requests of parents and learners) provide for teaching in a language of an ethnic minority and fostering of the ethnic minority's culture, the teaching process is conducted or certain subjects are taught in the language of the ethnic minority. The subject of the Lithuanian State language is a constituent part of the curriculum at such schools. In such schools:

- 1) the primary and basic curricula are implemented in the language of the ethnic minority, while selected curriculum subjects may be taught in the Lithuanian State language, upon the parents' (foster parents', guardians') request;
- 2) the secondary curriculum is implemented in the language of the ethnic minority. Curriculum subjects selected by the learners may be taught in the Lithuanian state language;
- 3) State-run and municipal pre-schools and general education schools provide opportunities for learners who belong to ethnic minorities to have supplementary study of their mother tongue; this is subject to the existence of a real need and the availability of a specialist of that language and if the teaching process is organised in another language.
3. A person who belongs to an ethnic minority may study his mother tongue at a school that implements non-formal education programs or with another education provider.
4. The children of persons who have the right to permanently or provisionally reside in the Republic of Lithuania are granted the possibility of studying the Lithuanian State language, of receiving education in the Lithuanian State language and (when possible) of studying their mother tongue.
5. All schools that provide general education must ensure mastery of the Lithuanian State language, meeting a standard prescribed by the Ministry of Education and Science.

Article 31. The Right to Study Religion

1. Religion is an optional part of moral education. Moral education is a part of primary, basic and secondary education. Upon parents' (foster parents', guardians') request, the subject of religion may be included in the pre-school education of their children. Non-formal religious education and self-education in religion may be carried out.
2. A learner in a school that implements primary, basic and secondary curricula has the right at the age of 14 to choose one of the following subjects of compulsory moral education: religious education (of a recognised traditional religious community or association) or ethics.
3. Parents (foster parents, guardians) choose between the subject of religious education (of a recognised traditional religious community or association) and the subject of ethics on behalf of learners who are under 14 years of age; in cases of learners who are wards of the State, the school decides between the subject of religious education (of a

recognised traditional religious community or association professed by the learner's family or relatives) and the subject of ethics.

4. At a formal education school (except schools of higher education) the curriculum of religious instruction is prepared by the respective recognised traditional religious community or association; the hierarchy of the religious community or association and the Minister of Education and Science assess and approve the curriculum, each in line with their competency.
5. A person who has attained a post-secondary or higher education level and a pedagogue's qualification or has the necessary special preparation may teach religion in formal education programs (except higher education studies curricula). Such a person must have permission to teach religion, issued as prescribed by the hierarchy of the corresponding recognised traditional religious community or association.
6. A school that is unable to provide religious instruction requested by the learners or parents (foster parents, guardians) in line with the beliefs of their recognised traditional religious community or association, grants credit for the learners' religious instruction provided at a Sunday school or another religious instruction class, subject to the requirements in paragraphs 4 and 5 of this Article.
7. Conditions for religious instruction and for teaching modules supplementing the program of religious instruction and satisfying the learners' need for self-expression are equivalent to those for the teaching of other elective subjects (and for teaching modules supplementing their respective programs and satisfying the learners' needs of self-expression).

Article 32. Accessibility of Education to Working Persons

1. The employer effects conditions for the employee to study, according to rules established by laws and other legislative acts.
2. Vocational, post-secondary schools and schools of higher education create conditions for working persons to study in various ways, including distance learning.

Article 33. Accessibility of Education to Socially Excluded Persons

1. The accessibility of education to socially excluded children from poor families, abandoned children, children of refugees, children not attending school, unemployed persons, persons who have returned from imprisonment, persons undergoing treatment

for alcohol and drug addiction as well as persons experiencing social exclusion is ensured by providing them with social services and pedagogical assistance.

2. The Government and municipalities implement targeted social and education programs directly or via schools. Such programs may be developed and implemented by non-governmental organisations as well as other legal entities and natural persons.
3. The Government and municipalities utilise the database of the Register of Residents and that of learners, to determine the number of children not attending school and their education needs and, together with schools, implement targeted programs for their inclusion in education activity.

Article 34. Accessibility of Education to People with Special Needs

1. Upon the request of the parents (foster parents, guardians) of a child with special needs, conditions are ensured for the child to study in a fully or partially integrated form at a pre-school and general education school located as close as possible to his home or at a school implementing a special education program. The school's special education commission or the Pedagogical-psychological Service assess special education needs and recommend a form of education. The Pedagogical-psychological Service recommends a school for the child.
2. Vocational, post-secondary schools and schools of higher education establish a supplementary preferential enrolment procedure for persons with special needs.
3. Accessibility of education to persons with special needs is ensured by adapting the school's environment, by providing psychological, special-pedagogical and special assistance, by supplying such persons with assistive education technology and special teaching aids, also in other ways prescribed in law.

Article 35. Accessibility of Education to Persons with Limited Mobility

1. Children who are unable to attend a school of general education due to an illness or a medical condition are provided the opportunity to study at a medical facility, to study at home, to study independently and to sit for examinations as prescribed by the Minister of Health and the Minister of Education and Science.
2. Persons who have been temporarily deprived of freedom or whose freedom has been temporarily restricted are provided the opportunity to study at their corrective or penal institution, so that they may attain a primary, basic and secondary education level, a

qualification and to study independently; such conditions are provided as prescribed by the Government or its authorised institution.

3. Servicepersons engaged in compulsory military service are provided with opportunities to study according to modules of general education programs, and to participate in non-formal education programs as prescribed by the Minister of Education and Science and the Minister of National Defence, also to engage in self-education.

Article 36. Transportation, Dormitories, Meal Service

1. Public transport is used to bring learners to schools that implement the needed curriculum, by way of the route specified in the learner's (identification) certificate, as established in the Law on Transportation Privileges. Learners of pre-primary curriculum groups and general education grades 1 - 8 in rural areas who live more than 3 kilometres away from school must be transported to the nearest appropriate municipal school or that of another founder by way of school buses or other transport.
2. The school founder organises the transportation of persons with special needs under 21 years of age who are unable to travel to the general education school on their own (i.e. are unable to walk unassisted or are unsafe in the street due to major disorders).
3. Full-time students of post-secondary schools and schools of higher education as well as learners at vocational and children's non-formal education schools are transported to schools by local (city) and/or long-distance transport.
4. The procedure of granting transport privileges to learners at day general education, vocational and children's non-formal education, schools as well as full-time students of post-secondary schools and schools of higher education travelling to/from school and the procedure of compensation of their travel costs is set forth in the Law on Transportation Privileges.
5. A learner who is admitted to a general education school and lives in a territory other than the service territory assigned by the founder to that school, upon the request of his parents (foster parents, guardians) is provided with dormitory accommodation. The founder of the school establishes a procedure for accommodation at the school dormitory.
6. Students (except orphans or those left without the care of parents (foster parents, guardians)) make partial payment for dormitory accommodation at a vocational, post-secondary school or school of higher education. The amount of payment for dormitory

accommodation at a vocational or post-secondary school, and allowances to be made in taking parents' (foster parents', guardians') income status into account, is determined by the founder. The amount to be paid for accommodation at the dormitory of a school of higher education is established by the school. These payments are used to cover a part of the maintenance costs of the dormitory.

7. The founder of the school covers the costs of learners' accommodation at a general education school dormitory. Parents (foster parents, guardians) pay for meal service according to a procedure established by the Government or its authorised institution.
8. Meal service for learners is organised at pre-schools, general education and primary vocational schools.
9. Learners receive meals free of charge in accordance with the procedure laid down by legal acts.
10. Organisation of meal service for children and learners at pre-schools and general education schools is the responsibility of the founder of the school. At vocational schools, it is the responsibility of the school principal.

Article 37. Quality of Education

1. The quality of education is the responsibility of the education provider. The State ensures the quality of formal and to a certain extent, that of non-formal education.
2. The Government or its authorised institution:
 - 1) establishes General requirements for programs of formal education, qualification of pedagogues; establishes General criteria for non-formal education programs financed from the State and municipal budgets and enforces these requirements;
 - 2) establishes the Criteria and procedure of issuing licenses and enforces observance of licensing requirements;
 - 3) establishes Standards for attained education levels and qualifications acquired through formal education, as well as the Procedures for the evaluation of competences, for attainment or acquisition and legitimating of an education level and qualifications.
3. The State, the founder of the school and the education provider, each within the scope of their competency, develop educational programs and vouch for their quality.
4. The Minister of Education and Science confirms the General curricula of pre-primary and general education, non-traditional education, vocational training, post-secondary and non-university (higher education) studies curricula, establishes Criteria for pre-

school and children's non-formal education programs, confirms General teaching plans for general education schools, Standards for attaining primary, basic, secondary education and vocational training levels, Guidelines for higher education study fields, Regulations of training of pedagogues, *Matura* examination programs and the procedure of organisation and execution thereof. The Minister, on the basis of education quality research findings, ensures the updating of formal education programs, introduction of new programs, interplay and coherence across programs of different levels.

5. The founder of a school that is financed with the founder's resources approves the elective parts of the formal education program implemented in the school. The county governor and the municipal council ensure that the supply of education programs implemented by schools founded by them corresponds to the needs of the local community (region).
6. The school:
 - 1) details and individualises formal education programs ;
 - 2) initiates variants of the electives in education programs;
 - 3) creates formal education program modules that supplement the programs and meet learners' self-expression needs ;
 - 4) develops non-formal education programs;
 - 5) chooses means of delivery of program content;
 - 6) vouches for flexibility and multiplicity (multiple versions) of program content, coherence between program content and means of delivery thereof, a match between individualised programs and students' needs and abilities, and that program implementation corresponds to the Standards for attained education level and qualification established by the State.
7. Natural persons and legal entities may initiate improvements of education program quality by addressing the persons who form education programs or institutions at an appropriate level.

Article 38. Evaluation of Learning Achievements

1. The purpose of evaluation of learning achievements is to help learners check their progress, determine their achievements and, upon comparison with State standards for general education levels and/or qualification – make decisions concerning further study or occupation.

2. Learning achievements are evaluated by a teacher, education provider, the school founder, the Ministry of Education and Science and its authorised institutions.
3. Evaluation of the achievements of learners participating in formal education (except higher education) programs and the usage of evaluation results are regulated by corresponding by-laws confirmed by the Minister of Education and Science.
4. Institutions authorised by the Minister of Education and Science organise examinations and commission other means of achievement evaluation.
5. Evaluation of the learning achievements of students at schools of higher education takes place as prescribed in the Law on Higher Education.

Article 39. Legitimizing of Learning Achievements

1. The learning achievements of a person engaged in the process of formal education, non-formal education or self-education are legitimated by means of a document (certificate, *matura* certificate, diploma) issued according to an established procedure; the form and the procedure of issue of the document is established by the Government or its authorised institution.
2. Learning achievement documents are issued:
 - 1) a certificate of basic education – upon completion of the basic curriculum;
 - 2) a *matura* attestation – upon completion of the secondary curriculum and upon passing the *matura* examinations;
 - 3) a post-secondary diploma – upon completion of the post-secondary studies curriculum and upon successfully defending the final thesis (project) and/or passing the final examinations.
3. The procedures for issuance of learning achievements documents attesting to the completion of vocational training or a studies curricula and attesting to attaining a higher education level, a qualification, a qualification degree or a research degree are regulated by the Law on Vocational Training and the Law on Higher Education.
4. Learners who have completed a part (module) of the primary, basic or secondary curricula, a special education curriculum or those who failed to pass the *matura* examinations receive a certificate attesting to their learning achievements.
5. A person who has completed a program of non-formal education or self-education may be granted a certificate thereof.

6. Recognition in Lithuania of education acquired abroad and attesting to the education acquired in Lithuania for persons leaving for a foreign country is regulated by legislative acts of the Republic of Lithuania and international agreements.

Article 40. Material Provision of Education and Learning Workload

1. The school's learning environment and the learners' learning load must meet public health (hygiene) norms and requirements for learners' safety and health established in legislative acts, and assure conditions for full implementation of educational programs.
2. The material environment of schools implementing pre-school and general education curricula is equipped according to the Standards for material provision confirmed by the Minister of Education and Science.
3. The Minister of Education and Science confirms the suitability for use of school equipment, teaching materials and textbooks that are mandatory under general education curricula, vocational training and post-secondary study programs; according to the established procedure the Minister of Education and Science also collaborates in drafting school public health (hygiene) norms confirmed by the Minister of Health.

CHAPTER FOUR

FOUNDING, ACTIVITY, CLOSURE AND RESTRUCTURING OF SCHOOLS AND ASSISTANCE INSTITUTIONS

Article 41. Types of Schools

1. Schools are divided into the following groups:
 - 1) general education schools;
 - 2) vocational schools;
 - 3) post-secondary schools;
 - 4) schools of higher education;
 - 5) non-formal education schools.
2. The type of a formal education school is defined according to the highest level of the formal education program determining main activities of that school.
3. At the decision of its founder and in the manner prescribed by Articles 42 and 43 of this Law, a formal education school may, beside the formal education programme which determines its main activities, implement non-formal education and other formal education programmes or their modules.

4. The types of general education schools are as follows: primary, basic and secondary.
5. The type of primary school comprises:
 - 1) primary school (primary curriculum);
 - 2) kindergarten-school (primary curriculum).
6. The type of basic school comprises:
 - 1) basic school (basic curriculum; basic and primary curricula; in certain cases – part I of basic curriculum and primary curriculum; part I of basic curriculum);
 - 2) youth schools (basic curriculum);
 - 3) special children's education and care residence (primary and basic curricula);
 - 4) hospital schools (basic and primary curricula);
 - 5) sanatorium schools (basic and primary curricula).
7. The type of secondary school comprises:
 - 1) secondary school (secondary curriculum; secondary curriculum and part II of basic curriculum; secondary and basic curricula; secondary, basic and primary curricula);
 - 2) gymnasiums (accredited secondary curriculum; accredited secondary curriculum and part II of basic curriculum; international bachelor's degree programme, accredited secondary curriculum and part II of basic curriculum; in certain cases – accredited secondary and basic curricula; accredited secondary, basic and primary curricula);
 - 3) arts gymnasium (accredited secondary and music curriculum, basic and music, primary and music curricula; accredited secondary and art curriculum, basic and art, primary and art curricula);
 - 4) conservatoire (accredited secondary and music curriculum, part II of basic curriculum and music curriculum);
 - 5) adult schools (adult secondary, basic and primary curricula; adult secondary and basic curricula);
 - 6) special education school (secondary, basic, primary and special education curricula).
8. Types of vocational schools and schools of higher education are regulated by the Law on Vocational Training and the Law on Higher Education.
9. Post-secondary schools are not divided into types.
10. The type of a non-formal education school is defined on the basis of the main non-formal educational activity implemented by that school.

11. The type of pre-school education school includes nurseries, nursery-kindergartens, kindergartens, nurseries, nursery-kindergartens and kindergartens for pre-school education of children with special needs.
12. The non-formal children's education school type includes music, art, arts and sports schools, education centres for the cultivation of children's abilities, schoolchildren's extracurricular halls, creative arts centres, clubs, Saturday and Sunday schools of ethnic minorities, etc.
13. The non-formal adult education school type includes adult education centres, "open" schools of higher education, teachers' in-service institutions, various training courses, etc.
14. The rules for naming and writing the names of schools are established by the State Commission of the Lithuanian Language.

Article 42. Founding of Schools and Assistance Institutions

1. Schools or institutions providing assistance to students, teachers and schools may be founded as follows:
 - 1) the *Seimas* may establish a State university upon a motion from the Government;
 - 2) the Government may establish a State college upon a motion from the Ministry of Education and Science;
 - 3) the Ministry of Education and Science may establish vocational schools, non-formal adult education schools, if necessary – schools to satisfy nation-wide learners' education (learning) needs (a national arts school, a special education school, etc.) and institutions that provide assistance to learners, teachers and schools; with written approval of the Minister of Finance;
 - 4) other Ministries, Government agencies, agencies under the Ministries may found vocational schools and non-formal adult education schools, with written approval of the Minister of Education and Science and the Minister of Finance;
 - 5) a County governor may found special education schools, vocational schools, non-formal adult education schools; if necessary – general education schools and institutions that provide assistance to learners, teachers and schools, with written approval of the Minister of Education and Science and the Minister of Finance;
 - 6) a municipal council may independently found pre-schools and other non-formal education schools; it may also found general education, special education and

vocational schools and institutions that provide assistance to learners, teachers and schools, according to criteria established by the Government;

- 7) other legal entities and natural persons of the Republic of Lithuania as well as legal entities and natural persons of foreign countries may establish general education, special education, non-formal education, vocational schools.
2. Non-state schools of higher education are established in accordance with the Law on Higher Education.
3. Several natural persons or legal entities may found a school upon entering into a contract for school founding.

Article 43. School Activity

1. A school is a public legal entity that functions as a budgetary or public establishment. Its activity is governed by this Law and the Law on Budgetary Institutions or the Law on Public Institutions. A non-State funded school is a legal entity. The founder chooses the statutory form of its activity.
2. A school commences its activity after its registration in the Register of Legal Entities as prescribed in the Civil Code and provisions of the Law on the Register of Legal Entities.
3. The school's activity as well as the rights, duties and responsibilities of its community members are regulated by the school's by-laws (statute) and the founding contract.
4. By-laws of public and municipal schools are drafted in accordance with Requirements for by-laws of public and municipal schools, confirmed by the Minister of Education and Science.
5. The activity of a school of higher education is regulated by its statute. The statute is drafted and approved as prescribed in the Law on Higher Education.
6. In order to implement vocational training and post-secondary studies curricula a school must have a license issued by the Minister of Education and Science or the Government. The procedure for licensing education is approved by the Government or its authorised institution.
7. A school (except schools of higher education) or any other education provider begins the process of enrolment and teaching only upon obtaining a license, if such a license is mandatory.
8. A school may:
 - 1) implement programs of formal and non-formal education;

- 2) assume liability, conclude study agreements and other contracts as specified by the founder or in the school's by-laws;
 - 3) establish subsidiaries or representatives and join associations, with the founder's permission;
 - 4) fix the prices, rates and tariffs of education and other services provided by the school in cases when they have not been fixed by the Government or the founder as prescribed in this Law or other laws;
 - 5) implement national and international education projects;
 - 6) engage in commercial and business activity as permitted by the by-laws, provided it is lawful;
 - 7) have other rights and duties not specified in this Law, provided they are not contrary to the laws of the Republic of Lithuania.
9. Schools must ensure the implementation of curricula and education programs, openness to the local community, the conclusion of study agreements and implementation of contractual obligations (also those emanating from study agreements), as well as a good quality of education.
10. Learners' and youth organisations that stimulate learners' and students' moral, national and civic consciousness, patriotism, foster their cultural and social development, help satisfy their self-development and self-expression needs may operate at school. The activity of the learners' and students' organisations is based on their statutes registered according to the established procedure; their activity may not be contrary to the Constitution and laws of the Republic of Lithuania.
11. Schools create favourable conditions for the functioning of learners' and students' organisations. The State, the founder or other legal entities or natural persons may finance and otherwise support the organisations.
12. Non-State funded schools may operate according to Teaching plans and curricula recognised in foreign countries. Such schools are maintained with the founder's funds. Curriculum content and methods must conform to the goals set for schools by the Ministry of Education and Science of the Republic of Lithuania and societal needs.

Article 44. Closure and Restructuring of Schools and Assistance Institutions

1. The founder of a State-run school, an institution providing assistance to learners, teachers or schools reorganises, liquidates or restructures such school, institution with written approval of the institutions that supported its founding. A municipal council

reorganises, liquidates or restructures schools of pre-school education or other non-formal education schools independently, and general education schools, special education schools, vocational training schools, institutions providing assistance to learners, teachers or schools - according to the criteria laid down by the Government.

2. The founder of a school must notify each learner (student) about the school's reorganisation, liquidation or restructuring in writing at least three months before the start of the school's reorganisation, liquidation or restructuring. The founder must discharge all obligations of the school to the learners provided for in the study agreement.
3. The founder reorganises, liquidates or restructures an institution providing assistance to learners, teachers or schools, as prescribed in the Civil Code.

CHAPTER FIVE

RIGHTS AND OBLIGATIONS OF LEARNERS, PARENTS (FOSTER PARENTS, GUARDIANS), TEACHERS AND OTHER EDUCATION PROVIDERS

Article 45. Agreements between the Learner and the Education Provider

1. An understanding of the education relationship between the students and the education provider is documented by means of a written agreement.
2. Study agreements of children who are under 14 years of age are concluded by their parents (foster parents) who act exclusively in the interest of their children.
3. Children between 14 and 16 years of age conclude the study agreement with the approval of their parents (foster parents).
4. The agreement specifies the parties to the agreement, the curriculum, the form of its completion, obligations of the parties, validity period of the agreement and basis and consequences of termination.
5. Education relationships commence from the first day of the learner's education. Agreements are concluded before the first day of learning. Any contractual provision contrary to this law or other laws is invalid. The agreement is registered at school, unless otherwise provided for in the laws.
6. Agreements of vocational and practical training are concluded as prescribed in the Law on Vocational Training; agreements of higher education studies are concluded as prescribed in the Law on Higher Education.

Article 46. A Learner's Rights and Obligations

1. A learner has the right:

- 1) to receive information free of charge about existing schools, education programs and forms of studies;
- 2) according to his abilities and needs, to study at school or independently and attain an education level and qualification that meets State standards;
- 3) from the age of 14 to independently choose a moral development curriculum (religious instruction or ethics);
- 4) to receive a high-quality education;
- 5) to take equivalency examinations attesting to the fulfilment of a certain program of formal education or a part (module) thereof;
- 6) to choose formal education program modules that supplement these programs and answer to the learners' self-expression needs as well as elective subject curricula and courses; to choose a program of studies, a lecturer (when several lecturers provide instruction in the same subject), to study according to an individual program of studies; to transfer from one stage of vocational training to another, provided the learner's attained general education level and professional preparedness meet the established criteria;
- 7) to receive psychological and special-pedagogical, special, social-pedagogical and informational assistance as well as healthcare in schools; to obtain information about evaluation of his achievements and other information pertaining to the learning process;
- 8) to receive social assistance, provided such assistance cannot be provided by his parents (foster parents, guardians);
- 9) to study in a psychologically-, emotionally- and physically-safe environment based on mutual respect, to have a learning workload and a workplace that conform to health (hygiene) requirements;
- 10) to an objective evaluation of his learning achievements;
- 11) to participate in the school's self-governance;
- 12) to defend his rights as prescribed in the laws;
- 13) to exercise other rights established in the Laws on Vocational Training, Special Education, Higher Education or Non-formal Adult Education as well as other laws.

2. A learner must:

- 1) upon entering into a study agreement, observe all its provisions as well as the requirements of documents that regulate the school's internal rules of procedure;
- 2) study in a diligent manner, respect teachers and other members of school community;
- 3) study in compulsory education programs until the age of 16.

Article 47. Parents' (Foster Parents', Guardians') Rights and Obligations

1. Parents (Foster Parents, Guardians) have the right:
 - 1) to receive information free of charge about existing schools, education programs and forms of studies;
 - 2) to participate in the selection of a curriculum, the form of education and a school or other education provider for the child (if necessary – to do it on his behalf);
 - 3) to obtain information about the child's learning conditions and about his achievements;
 - 4) to participate in the school's self-governance;
 - 5) to exercise rights established in the Law on Special Education and other laws.
2. Parents (Foster Parents, Guardians) must:
 - 1) send their children who have reached the age of 6 – 7 to school, provided they have achieved adequate maturity; ensure punctual and regular school attendance;
 - 2) provide their children with sound and secure living conditions; safeguard them against violence, intimidation and exploitation; ensure that their children undergo timely medical check-ups;
 - 3) co-operate with the school principal, other education provider, teachers, and other experts who provide special, psychological, social-pedagogical, special-pedagogical assistance and healthcare in dealing with the issues of children's learning;
 - 4) choose a program of moral development (religious instruction or ethics) for their children who are under 14 years of age;
 - 5) control and correct the children's behaviour;
 - 6) ensure the children's preparation for school and their learning in the programs of primary and basic education.

Article 48. The Right to Work as a Teacher

1. The Minister of Education and Science establishes the qualification requirements for pedagogues teaching pre-school, pre-primary, non-formal, primary, basic, secondary, special education, vocational training and post-secondary studies curricula. The following persons have the right to work as teachers according to the above-listed curricula:
 - 1) a person who has attained a post-secondary or higher education level (a specialised-secondary education level before 1995) and has acquired a pedagogue's qualification, also a person specified in paragraph 5 of Article 31 of this Law;
 - 2) a person who has attained a post-secondary or higher education level (a specialised-secondary education level before 1995) and does not have a pedagogue's qualification, as well as a person who has graduated from a vocational school and has at least 3 years of work experience in the respective field may work as a teacher of primary vocational training. Pedagogical-psychological knowledge courses must have been taken by such persons in the manner prescribed by the Minister of Education and Science;
 - 3) a person who has attained a post-secondary or higher education level (a specialised-secondary education level before 1995), or a secondary education level, but does not have a pedagogue's qualification, and who has taken a pedagogical-psychological knowledge course in the manner prescribed by the Minister of Education and Science, may work as a teacher of children's non-formal education.
2. Non-formal adult education programs of may be taught by:
 - 1) a person who has attained a post-secondary or higher education level (or a specialised-secondary education level before 1995);
 - 2) A person, who has graduated from a vocational school, has a qualification or at least 3 years of work experience in the respective area.
3. Repealed.
4. Citizens of foreign States or stateless persons may work at schools as prescribed in legislative acts of the Republic of Lithuania and international agreements.
5. The following persons may not work as teachers:
 - 1) a person whose permission to teach religion has been rescinded by the leadership of a traditional religious community or association may not provide religious instruction in formal education programs;
 - 2) a person who has been convicted in court for premeditated criminal activity;

- 3) a person who has been pronounced lacking or of diminished capacity by court ruling, until such time as he is pronounced capable or until the diminishment ruling is lifted;
- 4) a person whose parental powers have been restricted by court ruling – for the duration of restriction;
- 5) a person who has a disease specified in the respective list of the Ministry of Health;
- 6) a citizen of the Republic of Lithuania who received education in a language other than Lithuanian and does not have the second qualification category of fluency in the State language;
- 7) A former staff employee of the USSR State Security Committee (NKVD, NKGB, MGB, KGB) to whom the restrictions under the Law on the Judgement upon the USSR State Security Committee (NKVD, NKGB, MGB, KGB) and the Current Activities of the Staff Employees of this Organisation apply.

Article 49. A Teacher's Rights and Obligations

1. A teacher has the right:
 - 1) to offer his individual programs, to choose methods and forms of pedagogical activity;
 - 2) to attend in-service courses at least 5 days per year;
 - 3) to be attested and obtain a qualification category as prescribed by the Minister of Education and Science;
 - 4) to work in a psychologically-, emotionally- and physically- safe environment based on mutual respect, to have a properly-equipped workplace conforming to health (hygiene) requirements;
 - 5) to be involved in the school's self-governance;
 - 6) to exercise other rights established in the Laws on Vocational Training, Special Education, Higher Education or Non-formal Adult Education, as well as in other laws.
2. Teachers must:
 - 1) ensure their learners' safety and good quality of education;
 - 2) cultivate learners' firm moral, civic, ethnic and patriotic positions, assure circumstances for their personal growth;

- 3) observe the norms of Teacher's ethics as approved by legislative acts and documents establishing the school's internal rules of procedure;
 - 4) upgrade their qualifications;
 - 5) provide assistance to students with development and learning problems and special education needs;
 - 6) assess the students' learning achievements in an impartial manner;
 - 7) provide information to the parents (foster parents, guardians,) about their children's education needs and achievements on a regular basis;
 - 7) fulfil other obligations established in the Laws on Special Education, Vocational Training, Higher Education or Non-formal Adult Education.
3. Representatives of teachers' trade unions have the right to participate without hindrance in solving issues of pedagogues' working conditions in school.

Article 50. A Freelance Teacher's Rights and Obligations

1. A freelance teacher may, in the manner prescribed by legal acts, provide non-formal education, implement modules supplementing pre-school curricula or formal education programs as well as of the programmes meeting learners' self-expression needs.
2. A freelance teacher has the right:
 - 1) to implement non-formal educational and certain formal education program modules;
 - 2) to work according to his individual programs;
 - 3) to choose methods and forms of pedagogical activity;
 - 4) to provide informational, consulting and in-service assistance.
3. A freelance teacher must:
 - 1) observe the norms of Teacher's ethics;
 - 2) ensure his learners' safety;
 - 3) have a workplace for teaching that meets health (hygiene) requirements;
 - 4) implement the teaching process agreed upon with the learner.
4. A freelance teacher is not allowed to teach learners whom he teaches at school in curricula of the same subject.
5. Repealed

Article 51. Rights and Obligations of other Education Providers

1. Other education providers have the right:

- 1) to implement program modules that supplement pre-school curricula, formal education programs and answer to learners' self-expression needs as well as, upon obtaining a license, vocational training programs;
 - 2) to provide non-formal education;
 - 3) to provide information, consulting and in-service assistance;
 - 4) to receive allocated funding and appropriate allowances (preferences, reduced rates, etc.).
2. Other education providers must:
- 1) ensure education quality and their learners' safety during the teaching process;
 - 2) provide students with education conditions that meet health (hygiene) standards;
 - 3) observe the norms of Teachers' ethics;
 - 4) afford teachers with in-service activities.
3. Repealed

CHAPTER SIX

EDUCATION MANAGEMENT AND SELF-GOVERNANCE

Article 52. Education Management and the Entities Engaged therein

1. The purpose of education management is to assure the quality of implementation of State education policy through administrative means, including monitoring, planning, delegation and supervision of powers and responsibilities.
2. The entities engaged in education management are:
 - 1) the *Seimas*;
 - 2) the Government, Ministry of Education and Science, other ministries, government institutions, County governors;
 - 3) municipal institutions;
 - 4) the founder of a school;
 - 5) the principal of a school
3. Certain education management powers may be delegated to education self-governance bodies.

Article 53. Monitoring of Education

1. The purpose of monitoring of education is to empower all the entities engaged in education management to adopt reasoned decisions and to provide management assuring education quality.
2. State monitoring of education is implemented, in accordance with indicators of education monitoring and with the procedure set forth by the Minister of Education and Science, by the Ministry of Education and Science and other institutions authorised by the Minister, County governors, municipal administrations and schools.
3. The Ministry of Education and Science annually makes public reports about the state of the education system in the country and its regions.

Article 54. Education Planning

1. The purpose of education planning is, upon assessment of the state of education and with respect to the education needs of society, to set long-term and short-term goals and tasks of education, set priorities and define means for task implementation.
2. Policy priorities for education in Lithuania, long-term goals, directions of change of education content and funding priorities are set forth in the State Education Strategy. The Strategy is drafted and presented to the *Seimas* for confirmation by the Government. The Strategy covers a period of ten years and is reviewed at least every four years.
3. The Strategic education plans of the State, counties, municipalities and schools are drafted and co-ordinated on the basis of the State Education Strategy.
4. State Strategic education plans are drafted by the Ministry of Education and Science and confirmed by the Government.
5. The county Strategic education plan is approved by the County education council and confirmed by the County governor;
6. The municipal Strategic education plan is approved by the Municipal education council and confirmed by the Municipal council;
7. A school's Strategic plan is approved by the School council and the founder of the school and confirmed by the Principal.
8. Strategic education plans are implemented by means of annual Education action programs developed on the State, county, municipal and school level.
9. The State annual Education action program is reviewed by the Collegium of the Ministry of Education and Science and confirmed by the Minister of Education and Science.

10. A county annual Education action program is reviewed by the County education council and confirmed by the County governor.
11. A municipal annual Education action program is reviewed by the Municipal education council and approved by the Mayor.
12. A school's annual Action program is approved by the School council and the founder and confirmed by the Principal.
13. The planning of higher education takes place as prescribed in the Law on Higher Education.

Article 55. Government Powers in the Area of Education Management

The Government:

- 1) implements the laws regulating education, the decrees of the President and resolutions of the *Seimas*, long-term State education programs as well as the education provisions in the Government Program, and confirms the implementation programs of the Government Program;
- 2) co-ordinates the activities of the Ministry of Education and Science, other ministries and Government institutions in matters of education;
- 3) founds, reorganises, liquidates and restructures schools of higher non-university studies as well as those education management entities that are Government institutions or Ministerial institutions of the Ministry of Education and Science. The Government devolves to the Ministry all or part of the functions required of a founder of a Ministerial institution;
- 4) Charges its subordinate administrative institutions with the task of drafting of the State Education Strategy; is responsible for its implementation as well as that of the education provisions in the Government Program.

Article 56. Powers of the Ministry of Education and Science

The Ministry of Education and Science is empowered:

- 1) to shape and implement State education policy;
- 2) to bear responsibility for education quality;
- 3) to draft Strategic education plans and annual Education action programs ;
- 4) to submit proposals and draft resolutions to the Government: concerning the drafting and improvement of laws and other legislative acts; concerning the funding of education, the provision and property of schools and the disposal of schools' assets;

- concerning founding, reorganisation, liquidation and restructuring of State-run schools of higher education; concerning the issuance of permits to implement studies;
- 5) to set the beginning and the duration of the school year at schools of formal education (except non-State schools and schools of higher education);
 - 6) to co-ordinate terms and rules of admission at State-run schools of higher education;
 - 7) to organise and co-ordinate the accreditation of secondary education, vocational training, post-secondary and higher education studies curricula;
 - 8) to keep the Register of state studies and education programs, to establish and keep registers of institutions of education and science, licences, forms of certificates of education and diplomas, in-service programs and events, learners, students and pedagogues, to establish and maintain computerized information systems of state education;
 - 9) to organise *matura* examinations;
 - 10) to co-ordinate the activity of education departments of County governors and municipal administrations in the implementation of State education policy, to submit General by-laws for these departments for Government confirmation;
 - 11) to carry out recognition in Lithuania of education levels attained abroad;
 - 12) to maintain contacts with the appropriate institutions of foreign countries and international organisations, to stimulate independent co-operation of the country's schools and organisations with respective schools and organisations of other countries, to provide State assistance in the areas of education and studies to Lithuanians living abroad, to represent the Republic of Lithuania in foreign countries or at international organisations;
 - 13) to perform the function of the founder of subordinate schools and institutions providing assistance to learners, teachers and schools;
 - 14) to confirm the formal education content of general education, training (the General curricula and Subject curricula taught at general education schools of Lithuania, the Teaching Plans of general education, training and studies); to confirm State Standards for all levels (except higher education) of attained education and vocational training as well as Guidelines of higher education study fields; to confirm Criteria for the accreditation of curricula and the respective implementation procedure;
 - 15) to confirm the Procedure of sequential learning according to general education and vocational training programs, the Organisation and implementation procedure of the *matura* examinations, also the Procedure for final qualification examinations;

- 16) to confirm the Procedure for providing with general education and vocational training textbooks and teaching aids, the Requirements for by-laws of State and municipal schools;
- 17) to confirm the Methodology and procedure of school audits; to confirm the Qualification requirements for heads and experts of the education departments of County governors and municipal administrations, as well as Principals of schools of all types (except schools of higher education);
- 18) to confirm the Procedure for organising open competitions for the job positions of Principals of State schools (except schools of higher education) and municipal schools;
- 19) to confirm the By-laws of in-service training and attestation of principals, their assistants for education of State-run (except higher and post-secondary education) and municipal schools, heads of the divisions organising education, the By-laws of in-service training and attestation of teachers and experts providing assistance to learners, the Regulations for training of pedagogues, the By-laws of the Commissions in charge of fluency qualification in the State language;
- 20) to work on behalf of the teaching of the Lithuanian language and teaching in the Lithuanian language in foreign countries; to analyse whether the use of budgetary allocations to education is appropriate, to report to the public on the general state of education in the country and perform other functions prescribed by the laws and the Government.

Article 57. Powers of Ministries, State Institutions under the *Seimas* and Government Institutions

1. Ministerial and Government institutions:
 - 1) participate in working groups for the drafting of documents that regulate educational policy and schools' activity, submit proposals to the Ministry of Education and Science concerning draft legislative acts;
 - 2) together with the Minister of Education and Science issue legislative acts concerning education endeavours;
 - 3) perform the function of founder of their subordinate schools.
2. The Government establishes any particular competencies and responsibilities in education management issues of Ministerial and Government institutions.

3. State institutions accountable to the *Seimas*, in accordance with their competency, submit conclusions and proposals to the *Seimas* and the Government concerning draft laws and other legislative acts in the area of education.

Article 58. Powers of County Governors

County governors:

- 1) implement State education policy in the county, confirm the county's Strategic education plan and annual Education action programs, and, as prescribed in Article 63 initiate the founding of county self-governance bodies;
- 2) analyse the overall state of education in the county, supervise the activities of education providers;
- 3) found, reorganise and liquidate the education departments of the County governor's administration according to the model administrative structure confirmed by the Government, appoint education experts and heads of education departments;
- 4) form the network of special education schools and, together with municipal institutions, ensure the education of special needs students under programs of compulsory and universally available education;
- 5) found institutions providing assistance to learners, teachers and schools (Pedagogical-psychology services, Teachers' education centres, etc.), perform the functions of founder of their subordinate schools and of these institutions;
- 6) submit information regarding the state of education in the county to the Ministry as prescribed by the Minister of Education and Science.

Article 59. Powers of the Municipality

1. The municipal representative institution:
 - 1) implements State education policy in the municipality, confirms the municipal Strategic plan of education and annual Education action programs;
 - 2) founds, reorganises and liquidates the education departments of the municipal administration;
 - 3) forms a network of schools providing pre-school, pre-primary, primary, basic and secondary curricula; creates conditions for implementation of compulsory education of children; initiates the formation of a network of vocational training and adult education providers answering to the needs of the population and independently forms a network of non-formal education providers;

4) found, reorganises, liquidates or restructures schools and institutions providing assistance to learners, teachers and schools (pedagogical-psychological services, teachers' education centres, etc.).

2. The municipal executive institution:

- 1) analyses the state of education, ensures the fulfilment of State education policy;
- 2) appoints heads and experts of education departments in compliance with Qualification requirements laid down by the Minister of Education and Science;
- 3) carries out in-service training and attestation of school principals;
- 4) in the manner prescribed by the Government or an institution authorised by it, organises and keep an accounting of children living within the municipal territory and ensures that all children study according to compulsory education programs;
- 5) organises the evaluation of achievements in basic education as well as *matura* examinations of learners of schools located within the municipal territory;
- 6) ensures free transportation of learners to schools pursuant to paragraph 1 of Article 36 of this Law;
- 7) submit information about the state of education in the municipality to the Ministry, institutions of State supervision of education, and to the public as prescribed by the Minister of Education and Science.

Article 60. Powers of a School's Founder

1. The founder of a school:

- 1) ensures implementation of State education policy and effecting in the school laws, Government resolutions, decrees of the Minister of Education and Science and other legislative acts that regulate school activity;
- 2) evaluates residents' educational needs and adopts decisions concerning provision of education programs;
- 3) sets the beginning and duration of a school year for non-formal education and non-State schools;
- 4) founds, reorganises, liquidates and restructures the school;
- 5) confirms the by-laws (statute) of a school as well as amendments and additions thereto;
- 6) ensures the school's functioning and its democratic management;
- 7) approves the school's Strategic education plan and annual Action program (except at schools of higher education);

- 8) Repealed
 - 9) confirms the personnel structure at the school (except at schools of higher education);
 - 10) Repealed
 - 11) carries out attestation of Principals of State-run schools (except schools of higher education) as prescribed by the Minister of Education and Science;
 - 12) organises provision of informational, psychological, social-pedagogical, special-pedagogical, special and medical assistance to learners, also the provision of information, in-service, consultations and other assistance to the school and the teachers;
 - 13) organises in-service and attestation of the Principal, pedagogues and other persons involved in the education process;
 - 14) in the manner prescribed by legal acts, supervises the school's activity;
 - 15) organises the food service and dormitory accommodation for learners, also the transportation of persons with special needs as specified in paragraph 2 of Article 36;
 - 16) compiles and makes public information about the school's activity;
 - 17) performs other functions set forth in this Law and other laws.
2. The *Seimas*, the Government, the municipal council, entities and persons who have entered into a contract for the founding of a school may commission (empower) another institution to perform a part of the founder's functions.

Article 61. Appointment and Powers of the School Principal

1. The founder of a State-run school (except a school of higher education) approves the job description of the principal of such school, appoints him to the office by open competition, as well as dismisses him.
2. Job description of a principal of a municipal school is approved, a principal is appointed to the office by open competition and dismissed from the office in the manner prescribed by legal acts.
3. Principals of non-state schools shall be appointed to the office and dismissed from it in the manner prescribed by law.
4. The principal of the school:
 - 1) directs the drafting of the school's Strategic plan and annual Action program as well as the school education programs, confirms them and directs their implementation;

- 2) appoints and dismisses teachers, other persons involved in the education process and service personnel, also confirms their job descriptions in accordance with prescribed procedure;
 - 3) is responsible for making public the information specified in Article 26 and for the democratic management of the school; ensures relations based on co-operation, the observance of the norms of Teacher's ethics, transparency in decision-making, the provision of information to community members, in-service for the teaching and non-teaching staff, a sound and safe environment that prevents any manifestation of violence or intimidation, as well as the formation of hazardous habits;
 - 4) analyses the status of resources allotted to school activity and management, initiates the implementation of the school's internal audit and is responsible for the results of the school's activity;
 - 5) performs the functions prescribed by the founder of the school and stipulated in the School by-laws and the Job description.
5. The powers and responsibility of the head of a school of higher education are set forth in the Law on Higher Education.

Article 62. Self-Governance of a School

1. The self-governance of a school is founded upon education goals, the education programs implemented in the school and the traditions existing in that school.
2. Self-governance bodies of the school collectively discuss issues of school activity and funding and, within the scope of their competency as defined in the by-laws (statute) of the school, adopt decisions and influence decisions of the Principal; also they perform public supervision of the school's management. The variety and competency of self-governance bodies and the principles of their establishment are defined in the by-laws (statute) of the school.
3. The School council is the school's highest self-governance body, representing the students, the teachers, the parents (foster parents, guardians) and the local community. The School council accounts for its activity to the members of the school community who have elected the School council.
4. The Teachers' council is a standing school self-governance body dealing with teachers' professional and overall education issues (except in schools of higher education and non-formal education). It consists of the school administration, all the teachers

working at that school, healthcare personnel, psychologists, social pedagogues, special pedagogues, librarians and other persons directly involved in the education process.

5. Other school self-governance bodies (learners', parents' (foster parents', guardians')) may also function at school.
6. Self-governance particularities of vocational schools and schools of higher education are prescribed in the Laws on Vocational Training and Higher Education.

Article 63. County and Municipal Education Self-Governance Bodies

1. County and municipal Education councils, Vocational training and Special education councils as well as other councils of particular education areas are set up in order to promote participation of the public in the formation of and to impact implementation of county or municipal education policy.
2. County and municipal Education councils include representatives of learners, teachers, parents, (foster parents, guardians), social partners, education providers and/or their associations.
3. The by-laws of a county Education council are confirmed by the County governor; the by-laws of a municipal Education council are confirmed by the municipal council.
4. County and municipal Education councils analyse implementation of overall education policy, approve Strategic education plans and annual Education action programs and draw the public into their implementation.

Article 64. State Education Self-Governance Bodies

The following State education self-governance bodies promote the participation of the public in the formation of education policy and decision-making on matters of education:

- 1) the Education Council of Lithuania acts as an expert body and provides consultations on strategic issues of education development in Lithuania. The By-laws of the Education Council of Lithuania are confirmed by the Government;
- 2) the Council of General Education initiates and approves projects concerning change pre-school, pre-primary, primary, basic, secondary and special education curricula, qualification and professional development of pedagogues and provision of schools. Its By-laws are confirmed by the Minister of Education and Science;
- 3) the Council of Vocational Training of Lithuania advises on issues of vocational training. Its By-laws are confirmed by the Government;

- 4) the Council of Non-formal Adult Education of Lithuania reviews the main prospects for development of non-formal education in Lithuania and carries out the analysis of projects for systemic development of non-formal adult education. Its By-laws are confirmed by the Government or its authorised institution;
- 5) the Distance Learning Council of Lithuania is an advisory body for the Ministry of Education and Science in matters of distance learning development. Its By-laws are confirmed by the Minister of Education and Science;
- 6) the Council of Higher Education is an expert body for the Ministry of Education and Science in strategic matters of higher education development. Its By-laws are confirmed by the Government.

Article 65. Participation of School Community Members in Education Management

1. Members of the school community may participate in education management, and unite into associations, organisations and alliances of various interest groups (learners, students, teachers, parents (foster parents, guardians), schools, management level education leaders), that carry out tasks and functions for education, culture and scientific research development as determined by their members and set forth in their by-laws.
2. In accordance with the Laws on Public Organisations and Associations, teachers' associations, societies and alliances participate in the forming subject content and in resolving issues of teachers' in-service.
3. Entities of education management provide informational, consulting and methodological assistance to the organisations and associations specified in paragraph 1 of this Article for the fulfilment of their functions, and may invite them to provide consultations and act in the capacity of experts.
4. Trade union activity in schools is regulated by the Law on Trade Unions.

Article 66. Education Supervision

1. The intent of education supervision is to evaluate the implementation of State education policy, education provision, education quality, prudence of expenditures of allocated monies, implementation of education management decisions, implementation of the Law on Education and other legislative acts in the area of education, reliability of data on educational activity and also to promote improvement of performance by organisational, legislative and economic means.

2. Activities of education providers is supervised by the appropriate State institutions, the founder of the school, and the licensed educational activities – also by institutions which recommended to issue a licence.
3. State supervision of education providers' activities is performed by the Minister of Education and Science and the County governor in accordance with rules of State supervision of education confirmed by the Government.
4. The founder carries out supervision of the school's activity in accordance with the By-laws of supervision of school activity confirmed by the Minister of Education and Science, and with the prescribed Methodology of external audit of school management and pedagogical activity.
5. Supervision of the quality of higher education studies is performed by the Study Quality Assessment Centre.

CHAPTER SEVEN

EDUCATION FUNDING

Article 67. Sources of Education Funding

Education is funded from the following sources:

- 1) allocations from the State budget and municipal budgets;
- 2) other resources.

Article 68. Investments in Education Development

1. On the State level, capital (investment) funds for the development of education (construction, renovation and human resource development, etc.) are allocated through program financing, as set forth in the Law on the Approval of Financial Indicators of the State Budget and Municipal Budgets. The Ministry of Education and Science drafts One-year and Long-term education investment programs based on the State education strategy and the Government Program.
2. On the municipal level, capital (investment) funds for education development are allocated through program financing, as specified in budgets approved by municipal councils. Municipal capital investment programs are drafted taking into account State investment programs and on the basis of Strategic education plans.

Article 69. Funding of Education Programs and Schools

1. The principle of setting an amount for Teaching funds for one student is applied when allocating funds from State and municipal budgets for the financing of formal education programs at State-run, municipal and non-State schools (except schools of higher education) and for non-formal programs of children's education.
2. Teaching funds for municipal and non-State funded schools to finance pre-school, pre-primary, primary, basic, and secondary, and the respective special education and vocational training curricula, also supplementary modules of formal education programs and modules answering to the learners' self expression needs provided at schools of non-formal children's education are allocated from targeted budgetary assignments to municipal budgets from the State budget, as confirmed in the Law on the Approval of Financial Indicators of the State Budget and Municipal Budgets for the corresponding year; Teaching funds for State-run schools are allocated from assignments set forth in the State budget.
3. School maintenance funds are allocated to schools (except non-state schools of traditional religious communities and associations, specified in paragraph 7 of this Article) by the school's founder as prescribed by that founder.
4. The implementation of non-formal children's education (except pre-school and pre-primary education) programs is funded by the founder of the school, learners (their representatives) and sponsors, as prescribed in legislative acts.
5. Vocational, post-secondary, and non-formal adult education schools and institutions providing assistance to learners, teachers and schools are financed by their founders.
6. Schools of higher education are financed as prescribed in the Law on Higher Education.
7. Children's music, art and sports schools, non-State schools and programs of non-formal education receive support from the State and municipal budgets in accordance with the procedure established by the Government. Non-State schools of traditional religious communities and associations implementing formal education programs are financed in accordance with a procedure established by the Government or its authorised institution, by allocating from the budget Teaching funds and School maintenance funds of the same amount as those allocated to State-run and municipal schools of the corresponding type, when an international agreement of the Republic of Lithuania provides for such arrangements.

8. Provision of healthcare in schools is funded according to a procedure established by the Government, from the budget of the Mandatory Health Insurance Fund, the State and municipal budgets and other monies.

Article 70. Salaries of Principals, their assistants for education, heads of the divisions organising education, teachers, and experts providing assistance to learners

1. The basic salary of principals of State-run (except schools of higher education) and municipal schools, their assistants for education, heads of the divisions organising education depends on the individual's attained education level, length of service, management qualification category and complexity of activity.
2. The basic salary of a teacher of a State-run (except schools of higher education) and a municipal school, an expert providing assistance to a learner depends upon the individual's attained education level, length of service, qualification category, complexity of activity.
3. The Government lays down the procedure of payment for principals of State-run (except schools of higher education) and municipal schools, their assistants for education, heads of the divisions organising education, teachers, experts providing assistance to learners, and other employees participating in the process of education.
4. Salaries of principals, teachers and other employees of non-State schools are set in accordance with the procedure established in laws.
5. The heads, instructors and academic staff of schools of higher education are compensated for their work according to the post held, length of service and academic qualification as prescribed in the Law on Higher Education and other legislative acts.

Article 71. Material Support

1. A learner who studies according to primary vocational training and students of post-secondary schools may be paid a stipend and receive material support as prescribed by the Government.
2. Support to students of schools of higher education is regulated by the Law on Higher Education.
3. A learner in non-formal education may receive support as prescribed by the Government.

4. Each year the founder of a school (except schools of higher education) ensures payment for at least 5 days of in-service costs for teachers and other persons involved in the education process.
5. The founder of a school (except a school of higher education) may, from the general appropriations of the state budget assigned to him, render other material support to teachers and other specialists participating in the process of education.

Article 72. Payment for Education

1. Instruction in State-run and municipal schools according to pre-school, pre-primary, primary, basic, secondary, vocational training and post-secondary studies curricula is free of charge.
2. The fee payable for education, instruction or studies at a non-State school is determined by the founder of the school. The fee is paid on the basis of an agreement.
3. Learners studying according to primary and basic curricula use textbooks free of charge.
4. Learners studying according to secondary or basic vocational training curricula will be provided with textbooks from the school's textbooks supplies (if available), taking into account the income status of the parents (guardians) and the student.
5. Personal school supplies (exercise books, pens, calculators, etc.) are provided for learners by parents (foster parents, guardians).
6. A person with special needs is provided, both at school and at home, with special teaching aids and with assistive education technology, as prescribed by the Government or its authorised institution
7. The founder of the school determines the fees for additional services, provided at the parents' (foster parents', guardians') request at pre-schools and general education schools and specified in school by-laws (extended day groups, afterschool learners' care, studies, clubs, extracurricular groups, camps, excursions, etc.).
8. The Minister of Education and Science determines the fees for attained education level certificate forms, for repeat instruction in subjects of the secondary curriculum requested by persons who have attained a secondary education level and wish to better prepare for further studies, also for repetition of national-level or school-level examinations.

9. The founder determines fees for non-formal education (except pre-primary education) provided by a school. The fee is reduced taking into account learners' talents (abilities) and the income status of parents (foster parents, guardians).
10. Additional (i.e. not included in curricula of studies and instruction) teaching and education services provided by post-secondary and vocational schools, such as consultations, courses, computers and other information technology access for independent work, also individual study supplies (textbooks, lecture notes, etc.) are provided for a fee. The amount of the fee for services and supplies provided is determined by the Principal in collaboration with the School council.
11. Learners are provided with school supplies in accordance with the procedure laid down by legal acts.

CHAPTER EIGHT

INTERNATIONAL COOPERATION

Article 73. Participation in the International Dimension of Education

1. Parties of the education system of Lithuania have the right to participate in the international dimension of education, international programs or otherwise collaborate with the parties of education systems of foreign countries.
2. The terms and procedure of such participation and collaboration are established in international agreements of the Republic of Lithuania, agreements between institutions of the Republic of Lithuania and institutions of foreign countries, other legislative acts of the Republic of Lithuania, direct cooperation agreements between educational establishments of Lithuania and foreign States.
3. If any ratified international treaties of the Republic of Lithuania that are in effect provide for a different procedure, the provisions of the international treaties apply.

Article 74. Implementation of Educational Programs of Foreign and International Organisations

1. Schools of foreign and international organisations are founded and function in the Republic of Lithuania according to terms and procedure set forth in this Law, international agreements of the Republic of Lithuania and other legislative acts.
2. Education programs of foreign countries and international organisations may be implemented in Lithuanian schools in a language other than Lithuanian with the

written permission of the Minister of Education and Science; those who complete such programs receive certificates of the corresponding foreign countries or organisations.

CHAPTER NINE

FINAL PROVISIONS

Article 75. Provisions for the Transition Period

1. Enrollment for curricula of post-secondary studies continues till the 2003–2004 school year.
2. Universally available pre-primary training is introduced starting with the 2005–2006 school year.
3. Starting with the 2005–2006 school year, when partially financing pre-school curricula, the principle of setting an amount for Teaching funds for one pupil is applied.
4. Until the Register of legal entities comes into operation, registration of educational establishments takes place according to the By-laws of the State Register of Educational Establishments and Institutions of Science and Studies confirmed by the Government.

I proclaim this Law passed by the Seimas of the Republic of Lithuania.

PRESIDENT OF THE REPUBLIC

ROLANDAS PAKSAS